

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY-----X
ROBERTO ARIAS,

Plaintiff,

SUMMONS

-against-

Basis of Venue:
Place of IncidentTHE CITY OF NEW YORK, NYPD OFFICER
ASIA BOYD (Shield # 19637), NYPD OFFICERS
JANE and JOHN DOE #'s 1-12 (Names and numbers
are unknown at present) and Other Unidentified members
of the New York City Police Department,Plaintiff Designates
New York County as the
place of trial

Defendants.

-----X
To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
February 28, 2022

Respectfully submitted,

/s/ Sydney O'Hagan
Sydney O'Hagan, Esq.
40 Exchange Place
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TO: CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007

NYPD OFFICER ASIA BOYD (Shield # 19637), Housing Bureau, PSA 4, New York, NY

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY-----X
ROBERTO ARIAS,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD OFFICER
ASIA BOYD (Shield # 19637), NYPD OFFICERS
JANE and JOHN DOE #'s 1-12 (Names and numbers
are unknown at present) and Other Unidentified members
of the New York City Police Department,Defendants.
-----XPlaintiff **Roberto Arias**, by his attorney, SYDNEY O'HAGAN, ESQ., as and for the Complaint
herein, alleges upon information and belief as follows:**PRELIMINARY STATEMENT**

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, the rights secured by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Plaintiff was unlawfully arrested by the defendants. Plaintiff was deprived of his federal constitutional and state constitutional and common law rights when the individually named police officer defendants unlawfully confined plaintiff, caused the unjustifiable arrest of plaintiff, used excessive force causing physical injury, engaged in malicious prosecution and denial of a fair trial of the plaintiff.

PARTIES

2. Roberto Arias is a citizen of the United States and a resident of New York at the time of this arrest.

3. NYPD OFFICER ASIA BOYD (Shield # 19637) is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
4. NYPD OFFICER ASIA BOYD (Shield # 19637) is being sued in their individual capacity and official capacity.
5. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
6. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
7. New York Police Officers John and Jane Doe #'s 2-12 are and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
8. Police Officers John and Jane Doe # 2-12 are being sued in his/her individual capacity and official capacity.
9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
10. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police

officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

11. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
12. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
13. The City of New York held a 50(h) hearing examination of the Plaintiff on August 26, 2021.

STATEMENT OF FACTS

14. On August 26, 2015 at approximately 12:40 a.m. at 40 Madison Street, in New York, New York, Plaintiff Arias was standing outside when numerous police officers from the PSA4 precinct, and other unknown police commands, including upon information and belief, NYPD Officer Asia Boyd (Shield # 19637), Sergeant Duran (f/n and shield unknown) and NYPD Officers John and Jane Does # 1-12, and other as yet unknown police officers, at times acting in concert and at times acting independently, committed the following illegal acts against Plaintiff.
15. On August 26, 2015 approximately 12:40 a.m., Plaintiff was standing outside talking with some of his friends. He was not in possession of any contraband, illegal substances, or weapons in his and was not engaged in any illegal activity. Various other people were outside at the same time and a separate group of individuals standing about ten feet away were playing music loudly.
16. At approximately 12:30 a.m., several uniformed NYPD officers arrived on the scene, including, upon information and belief, defendant NYPD Officer Asia Boyd (Shield # 19637) and unidentified NYPD Officer Sergeant Duran. Upon information and belief, defendant officers made repeated statements regarding the loud music. When defendant officers approached the group of people near the music, several of those individuals ran away. This behavior angered the officers who then began

rounding the remaining individuals in the vicinity, including Plaintiff and his friends. Plaintiff, who had remained at the scene because he was not engaged in any wrongdoing, was shoved into a group of people and arrested.

17. Plaintiff was handcuffed very tightly and requested that officers loosen the handcuffs several times. Defendant officers refused to loosen the cuffs and placed Plaintiff in the police vehicle in an aggressive manner, causing further pain and injury his wrists.
18. Plaintiff's handcuffs were removed at the precinct. They were never loosened. While handcuffed, Plaintiff experienced pain and tingling to his hands.
19. Plaintiff was incarcerated at a local precinct and New York County Central Booking. During his incarceration, NYPD defendants falsely and maliciously told the New York County District Attorney's Office that Plaintiff had committed the crime of Promoting Gambling in the second degree and Disorderly Conduct. Defendants knew these allegations were false because they never witnessed Plaintiff engage in any game of dice or exchange any money with anyone. He never behaved in a disorderly manner and the criminal complaint failed to allege any conduct that would constitute disorderly conduct as defined under New York State Penal Law.
20. All charges against Plaintiff were dismissed and sealed on March 26, 2021.
21. Plaintiff was incarcerated for 24 hours in filthy and inhumane conditions. He missed one week of work as a result of the arrest. He suffered significant injury to his wrists which remained swollen for months after they were removed from his wrists. He still has a scar to his wrists.

FIRST CAUSE OF ACTION**ASSAULT**

22. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 21 with the same force and effect as if more fully set forth herein.
23. Defendants their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they intended to cause him physical injury and actually caused him injury. Plaintiff was assaulted by defendant NYPD Officer Asia Boyd (Shield # 15959) and/or other NYPD officers when handcuffs were placed very tightly on his wrists, causing pain, swelling, and tingling to his fingers. Defendant NYPD officers refused to loosen the cuffs despite the injuries they were causing to his wrists.
24. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
25. The City, as the employer of defendants is responsible for their wrongdoing under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION**MALICIOUS PROSECUTION**

26. The plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 25 with the same force and effect as if more fully set forth at length herein.
27. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York.

28. Defendants commenced and continued a criminal proceeding against Plaintiff with malice and without probable cause, caused him a serious deprivation of liberty as a result, and Plaintiff obtained a favorable termination on the fabricated charges.
29. Defendants commenced and continued a criminal proceeding against Plaintiff.
30. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which he was prosecuted because Plaintiff was charged with promoting gambling when he had not engaged in any gambling and was never observed engaging in gambling.
31. The prosecution and criminal proceedings terminated favorably to Plaintiff on March 26, 2021.
32. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate his state constitutional and tort rights.
33. The individually named Defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

THIRD CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

34. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 33 with the same force and effect as if more fully set forth at length herein.
35. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

FOURTH CAUSE OF ACTION

FAILURE TO INTERVENE

36. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 35 with the same force and effect as if more fully set forth at length herein.
37. Defendants had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD, subjecting Plaintiff to, *inter alia*, unlawful search and seizure, detention, and malicious prosecution.
38. Defendants failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
39. As a result of the foregoing, Plaintiff was subjected to illegal search and undue force upon his person over the course of his false arrest.
40. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
41. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

NEGLIGENCE

42. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.
43. Defendants owed a duty of care to Plaintiff.
44. Defendants breached that duty of care by subjecting him to unjustified illegal search and undue force and unprivileged deprivation of his liberty without sufficient or any cause to do so. In particular,

defendant officers placed handcuffs very tightly on his wrists and then failed to loosen them in a timely manner, causing pain and physical injury.

45. As a direct and proximate cause of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
46. All of the foregoing occurred without any fault by Plaintiff.
47. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF

DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

48. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
49. All of the aforementioned acts of defendants NYPD OFFICER ASIA BOYD and NYPD OFFICERS JOHN and JANE DOE #1-12, their agents, servants, and employees, were carried out under the color of state law.
50. All of the aforementioned acts deprived Plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fifth, Sixth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.
51. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.
52. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of

the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.

53. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF

DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983

1. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
2. Defendants NYPD OFFICER ASIA BOYD and NYPD OFFICERS JOHN and JANE DOE #1-12 created false evidence against the plaintiff, alleging that he committed the crime of Promoting Gambling and Disorderly Conduct.
3. Defendants NYPD OFFICER ASIA BOYD and NYPD OFFICERS JOHN and JANE DOE #1-12 forwarded false evidence and false information to prosecutors in the New York County District Attorney's Office – namely, the defendants falsely informed prosecutors *inter alia*, that they alleged Plaintiff had promoted gambling or acting in a disorderly manner, when, in fact, they had no made no such observations and arrested Plaintiff in retaliation for other individual's conduct.
4. Defendants NYPD OFFICER ASIA BOYD and NYPD OFFICERS JOHN and JANE DOE #1-12 misled the prosecutors by creating false evidence against the Plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.
5. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants NYPD OFFICER ASIA BOYD and NYPD OFFICERS JOHN and JANE DOE #1-12 violated Plaintiff's

constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

6. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

THIRD CLAIM FOR RELIEF

FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983

7. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
8. Defendants NYPD OFFICER ASIA BOYD and NYPD OFFICERS JOHN and JANE DOE #1-12 had an affirmative duty to intercede when Plaintiff's constitutional rights were being violated in defendants' presence by committing the acts of false arrest, unlawful imprisonment, and the misrepresentation and falsification of evidence regarding the circumstances surrounding Plaintiff's arrest throughout all phases of the criminal proceedings.
9. Defendants NYPD OFFICER ASIA BOYD and NYPD OFFICERS JOHN and JANE DOE #1-12 further violated Plaintiff's constitutional rights when they failed to intercede and prevent the violation or further violation of Plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.
10. As a result of the defendants' failure to intercede when Plaintiff's constitutional rights were being violated in defendants' presence, Plaintiff sustained, *inter alia*, physical and emotional injuries, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

FOURTH CLAIM FOR RELIEF**MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

11. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
12. Defendants NYPD OFFICER ASIA BOYD and NYPD OFFICERS JOHN and JANE DOE #1-12 misrepresented and falsified evidence before the New York County District Attorney, including false allegations that Plaintiff committed act of Robbery in the Second Degree.
13. Defendants NYPD OFFICER ASIA BOYD and NYPD OFFICERS JOHN and JANE DOE #1-12 did not make a complete and full statement of facts to the District Attorney.
14. Defendants NYPD OFFICER ASIA BOYD and NYPD OFFICERS JOHN and JANE DOE #1-12 withheld exculpatory evidence from the District Attorney.
15. Defendants NYPD OFFICER ASIA BOYD and NYPD OFFICERS JOHN and JANE DOE #1-12 were directly and actively involved in the initiation of criminal proceedings against plaintiff.
16. Defendants NYPD OFFICER ASIA BOYD and NYPD OFFICERS JOHN and JANE DOE #1-12 lacked probable cause to initiate criminal proceedings against plaintiff.
17. Defendants NYPD OFFICER ASIA BOYD and NYPD OFFICERS JOHN and JANE DOE #1-12 acted with malice in initiating criminal proceedings against plaintiff.
18. Defendants NYPD OFFICER ASIA BOYD and NYPD OFFICERS JOHN and JANE DOE #1-12 were directly and actively involved in the continuation of criminal proceedings against plaintiff.
19. Defendants NYPD OFFICER ASIA BOYD and NYPD OFFICERS JOHN and JANE DOE #1-12 lacked probable cause to continue criminal proceedings against plaintiff.
20. Defendants NYPD OFFICER ASIA BOYD and NYPD OFFICERS JOHN and JANE DOE #1-12 acted with malice in continuing criminal proceedings against plaintiff.

21. Defendants NYPD OFFICER ASIA BOYD and NYPD OFFICERS JOHN and JANE DOE #1-12 misrepresented and falsified evidence throughout all phases of the criminal proceedings.
22. Specifically, defendants NYPD OFFICER ASIA BOYD and NYPD OFFICERS JOHN and JANE DOE #1-12 made the aforementioned false and misleading allegations regarding the circumstances surrounding Plaintiff's arrest.
23. Notwithstanding the perjurious and fraudulent conduct of defendants NYPD OFFICER ASIA BOYD and NYPD OFFICERS JOHN and JANE DOE #1-12, the criminal proceedings were terminated in Plaintiff's favor on July 12, 2021.
24. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, he suffered economic damages, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FIFTH CLAIM FOR RELIEF

MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

25. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
26. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.
27. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:
 - A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,

- B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
 - C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
 - D. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and
 - E. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.
28. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the Plaintiff.
29. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the Plaintiff as alleged herein.
30. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the Plaintiff as alleged herein.
31. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the Plaintiff's constitutional rights.

32. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the Plaintiff's constitutional rights.
33. The acts complained of deprived the Plaintiff of their right:
- F. Not to be deprived of liberty without due process of law;
 - G. To be free from seizure and arrest not based upon probable cause;
 - H. Not to have summary punishment imposed upon them; and
 - I. To receive equal protection under the law.

WHEREFORE, ROBERTO ARIAS, Plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
February 28, 2022

Respectfully submitted:

By: /s/ Sydney O'Hagan
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New York, New York 10005
(774) 218-3461
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TO:

CITY OF NEW YORK: CORPORATION COUNSEL 100 Church Street, New York, NY 10007

NYPD OFFICER ASIA BOYD (Shield # 19637), PSA 4, New York, NY 10005

I, **SYDNEY O'Hagan**, an attorney duly admitted to practice before the Courts of the State of

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

1/s/ Sydney O'Hagan
Sydney O'Hagan, Esq.